



ENTERTAINMENT AGREEMENT

July 2026

This agreement is made between **TCC Hotel Collection Co., Ltd. (Branch 00015)**, located at 1 Empire Tower G, 53, 56, 57, 58 Floor, South Sathorn Road, Yannawa, Sathorn, Bangkok 10120, Thailand (TEL: 024071645, TAX ID: 0105546025131, Branch 00015), hereinafter referred to as the "Venue" and **Bright Ears Co., Ltd.**, with its Head Office at Garden Home Village, Phaholyothin Road, Amphur Kookot, Lum Luk Ka District, Pathum Thani, Thailand (TEL: 0856644142, TAX ID: 0105550096659), hereinafter referred to as the "Agency."

PERFORMANCE DETAILS

The Venue hereby engages the Agency to provide entertainment services at NOBU. The Agency's entertainers agree to perform as DJs from Monday – Sunday, from August 1st 2026 – January 31st 2027.

WORKING SCHEDULE

The working schedule shall be mutually agreed upon between the Agency and the Venue. Any changes to the schedule must be communicated at least 48 hours in advance unless otherwise agreed by both parties.

HOURS OF WORK

Normal working hours shall be in accordance with the Venue's rules and regulations for 7 nights per week from Monday to Sunday from August 1st 2026 – January 31st 2027, as follows:

NOBU: 20:00 – 24:00 (4 hours), with 1 DJ Sunday to Thursday, and 2 DJs on Friday & Saturday

Total nightly performance hours: 4 hours (Sunday–Thursday) / 4 hours (Friday & Saturday)

DUTIES AND RESPONSIBILITIES

The Entertainer will ensure that particular attention is given to building up the atmosphere each night in accordance with the audience type. Music must be played in continuous mode during each set of performance. An appropriate level of energy is expected at all times.

EQUIPMENT

The Venue shall provide all necessary music equipment for the performance. The Entertainer will be responsible for taking good care of and maintaining the equipment provided by the Venue during performance hours. The Venue shall maintain appropriate insurance coverage for its own equipment.

FEE

The Venue agrees to pay the Agency the following nightly rates:

NOBU · Sunday–Thursday — 1 DJ, 4 hours (20:00–24:00)	THB 4,600 + 322 (7% VAT) – 138 (3% WHT) = THB 4,784 / night
NOBU · Friday & Saturday — 2 DJs, 4 hours (20:00–24:00)	THB 10,000 + 700 (7% VAT) – 300 (3% WHT) = THB 10,400 / night

Special dates: The nightly rates above apply to regular scheduled performances only. New Year's Eve (31st December 2026) is excluded from these rates and will be quoted and invoiced separately as a special event.

The Agency's entertainers will perform seven nights per week, from Monday to Sunday, from August 1st 2026 – January 31st 2027.

Payment will be made monthly, after receiving the attendance worksheet and invoice. The invoice must be submitted to the accounting department by the 30th of each month to process the payment. The fee will be paid via direct bank transfer to the Agency's account by the 25th of the following month.

BANK INFORMATION

BANK OF AYUDHYA PUBLIC COMPANY LIMITED

Fortune Town BR, C.P. Tower II, Ratchadapisek Road, Dindaeng, Bangkok 10400, Thailand

Account Name: Co.,Ltd. Bright Ears · Saving Number: 253-1-43635-5 · Swift Code: AYUDTHBK

WEATHER

The Venue reserves the right to cancel the performance in the event of adverse weather conditions by giving notice at least 3 hours before the scheduled performance time. In case of such weather-related cancellation, no charges will apply.

FORCE MAJEURE

Neither party shall be liable for any failure or delay in performing their obligations under this Agreement due to causes beyond their reasonable control, including but not limited to acts of God, natural disasters, pandemics, government actions or orders, civil unrest, strikes, or other events that could not have been reasonably anticipated or prevented. The affected party shall notify the other party as soon as practicable of such event and its expected duration.

CANCELLATION

Both parties have the option to terminate this agreement by giving 30 days notice in writing.

DUTY MEAL

Each Entertainer is entitled to 3 selected non-alcoholic drinks on the working day, 1 glass per hour (maximum 3 glasses per day).

LAUNDRY

Not provided by the Venue.

UNIFORM

The Entertainer may wear proper private attire matching the Venue's concept.

SOCIAL SECURITY & INSURANCE

The Entertainer will bear the cost of social security contributions and related formalities, as well as personal insurance.

EMERGENCY ABSENCE / LEAVE

In the event that the Entertainer is unable to perform according to the working schedule, the Agency will provide a suitable replacement.

MEDIA AND RECORDING RIGHTS

The Venue may photograph or video record the Entertainer's performance for internal documentation and promotional purposes on the Venue's official channels. Any commercial use of such recordings beyond standard promotional activities requires prior written consent from the Agency. The Entertainer retains all rights to their original music productions and mixes.

INDEMNIFICATION

Each party agrees to indemnify, defend, and hold harmless the other party from any claims, damages, losses, or expenses (including reasonable legal fees) arising from their own negligence, willful misconduct, or breach of this Agreement.

DISPUTE RESOLUTION AND GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the Kingdom of Thailand. Any disputes arising from or relating to this Agreement shall first be attempted to be resolved through good faith negotiation between the parties. If the dispute cannot be resolved within 30 days of written notice, either party may pursue resolution through the courts of Thailand having jurisdiction.

GENERAL AGREEMENT

The Entertainer will attend and organize rehearsals necessary to maintain entertainment trends and agrees to conform to house rules and regulations of the establishment. The Entertainer will have no monetary claim on the Venue for attending these rehearsals.

The Entertainer is an independent contractor and is not the employee of the Venue.

The Entertainer should adhere to the house code of conduct.

Matters not addressed in this Agreement shall be resolved through mutual discussion and agreement between both parties in good faith.

I have read and agreed on the above terms and conditions of the agreement and undersigned for reference.

Bright Ears Co., Ltd.

TCC Hotel Collection Co., Ltd. (Branch 00015)

Kullaphat Wittayaphan
Director

Simon Bell
Cluster General Manager

Dan Jamme
Multi Restaurants General Manager

Thamonwan Chandhradipra
Cluster Director of Finance